

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
ROBERT J. MORETY,

Plaintiff,

-against-

THE CITY OF NEW YORK, and DETECTIVE
ROBERTO ASSENCAO ((Tax Reg #: 917254),

Defendants.
-----X

Plaintiff designates
Queens County as the
place of trial
The basis of venue is
Plaintiff's residence

SUMMONS

Plaintiff resides at:
90-10 34th Ave, Apt. 3I
Jackson Heights, NY 11372

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Jackson Heights, New York
August 25, 2015


EMILIANO PEREZ, ESQ.

Attorney for Plaintiff

ROBERT J. MORETY

3732 75th Street

Jackson Heights, New York 11372

(718) 440-9214

Defendants' addresses:

THE CITY OF NEW YORK
1 Centre Street
New York, New York 10007

DETECTIVE ROBERTO ASSENCAO (Tax Reg #: 917254)
c/o 115th Precinct
92-15 Northern Blvd.
Jackson Heights, NY 11372

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No.:
ROBERT J. MORETY,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK and DETECTIVE
ROBERTO ASSENCAO ((Tax Reg #: 917254),

Defendants.

-----X

Plaintiff, ROBERT J. MORETY, complaining of the Defendants THE CITY OF NEW YORK and DETECTIVE ROBERTO ASSENCAO (Tax Reg #: 917254), by his attorney, EMILIANO PEREZ, ESQ., respectfully sets forth and alleges as follows:

1. That at the time of the commencement of this action, plaintiff ROBERT J. MORETY resided in the city and State of New York, County of Queens.
2. Upon information and belief, that at all times mentioned herein, defendant THE CITY OF NEW YORK was a municipal corporation within the State of New York.
3. That at all times mentioned herein, the New York City Police Department is a department/agency/instrumentality of the City of New York.
4. That on or about November 5, 2014 and at all times mentioned herein, DETECTIVE ROBERTO ASSENCAO (Tax Reg #: 917254), was a detective of the New York City Police .
5. That on or about November 5, 2014 Plaintiff ROBERT J. MORETY was in his apartment, located at 90-10 34th Ave, Apt. 3I, Jackson Heights, NY 11372.
6. That on or about November 5, 2014 and at all times mentioned herein, ROBERT J. MORETY was not engaged in any illegal activity.
7. That on or about November 5, 2014 and at all times mentioned herein, officers/agents/employees of the New York City Police Department did not have reasonable suspicion that ROBERT J. MORETY had engaged in or was engaging in criminal activity.

8. That on or about November 5, 2014 and at all times mentioned herein, officers/agents/employees of the New York City Police Department did not possess probable cause to arrest ROBERT J. MORETY .
9. That on or about November 5, 2014 and at all times mentioned herein, officers/agents/employees of the New York City Police Department did not possess a warrant to search or arrest plaintiff ROBERT J. MORETY .
10. That on or about November 5, 2014 approximately at 3:30 P.M., officers/ agents/employees of the New York City Police Department instructed Plaintiff ROBERT J. MORETY in to go with them to the 115th precinct for questioning regarding a scooter that was supposedly stolen in the apartment building's garage the night before.
11. That on or about November 5, 2014, officers/ agents/employees of the New York City Police Department arrested Plaintiff ROBERT J. MORETY at the 115th Precinct.
12. That on or about November 5, 2014, officers/ agents/employees of the New York City Police Department placed Plaintiff ROBERT J. MORETY in handcuffs.
13. That on or about November 5, 2014 approximately at 3:30 P.M., officers/ agents/employees of the New York City Police Department detained Plaintiff ROBERT J. MORETY at the 115th Precinct.
14. That on or about November 5, 2014 after detaining Plaintiff ROBERT J. MORETY, officers/ agents/employees of the New York City Police Department moved Plaintiff to the Queens Central Booking and hereby proceeded to detain Plaintiff there.
15. That on or about November 6, 2014, Plaintiff ROBERT J. MORETY was moved to Riker's Island by officers/ agents/employees of the New York City Police Department or Department of Correction.
16. Plaintiff ROBERT J. MORETY was illegally imprisoned for about 5 days.
17. That at all times mentioned herein, the officers/agents/employees of the New York City Police Department were acting within the scope of their agency/ employment with Defendant THE CITY OF NEW YORK.

18. During the assault and battery of the Plaintiff ROBERT J. MORETY, the Plaintiff was illegally confined and underwent severe pain and distress, both physically and psychologically.
19. At all times mentioned herein, the officers/agents/employees of the New York City Police Department had no reason to assault and batter the plaintiff ROBERT J. MORETY .
20. That at all times mentioned herein, the officers/agents/employees of the New York City Police Department acted under the color of state law in denying plaintiff ROBERT J. MORETY's rights, privileges and immunities under the First, Fourth, Fifth, Eighth, Thirteenth and Fourteenth Amendments of the United States Amendment
21. That heretofore and on March 9, 2015, and within ninety (90) days after the claim herein sued about arose, the plaintiff ROBERT J. MORETY caused a Notice of Claim and Intention to Sue, in writing, sworn to by or on behalf of the plaintiff to be served upon and filed with defendant THE CITY OF NEW YORK set forth the name and post office address of the plaintiff herein and his attorney, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damage or injuries claimed to have been sustained so far as then practicable.
22. That at least thirty (30) days have elapsed since the demand or claim upon which this action is predicated was presented to defendant THE CITY OF NEW YORK for adjustment and that it has neglected and/or refused to make adjustment or payment thereof.
23. That, on or about May 14, 2015, the defendant THE CITY OF NEW YORK examined plaintiff ROBERT J. MORETY under oath pursuant to section 50-h of the General Municipal Law.
24. That this action is commenced within one (1) year after the cause of action accrued.
25. That this action falls within one or more of the exceptions set forth in Section 1602 of the CPLR.
26. That as a result of the foregoing, plaintiff ROBERT J. MORETY sustained damages in excess of the jurisdictional limits of all lower courts.

**COUNT 1: CLAIM FOR RECOMPENSATION PURSUANT TO 42 U.S.C.
1983 DUE TO VIOLATION OF FEDERAL CONSTITUTIONAL RIGHTS**

27. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 26 with the same force as if alleged in full herein.
28. The officers/agents/employees of the New York City Police Department illegally confined ROBERT J. MORETY pursuant to an official policy of the City of New York.
29. The officers/agents/employees of the New York City Police Department assaulted ROBERT J. MORETY pursuant to an official policy of the City of New York.
30. The officers/agents/employees of the New York City Police Department inflicted psychological trauma and emotional distress to ROBERT J. MORETY pursuant to an official policy of the City of New York.
31. The officers/agents/employees of the New York City Police Department illegally confined ROBERT J. MORETY pursuant to customs and practices of the City of New York.
32. The officers/agents/employees of the New York City Police Department assaulted ROBERT J. MORETY pursuant to customs and practices of the City of New York.
33. The officers/agents/employees of the New York City Police Department inflicted psychological trauma and emotional distress to plaintiff ROBERT J. MORETY pursuant to customs and practices of the City of New York.
34. The illegal confinement of, assault and battery of, and infliction of emotional distress and psychological trauma upon plaintiff ROBERT J. MORETY violated his rights as set out in the First, Fourth, Fifth and Eighth Amendments of the United States Constitution.

COUNT 2: VIOLATION OF DUE PROCESS

35. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 34 with the same force as if alleged in full herein.
36. The officers/agents/employees of the New York City Police Department proceeded denying plaintiff ROBERT J. MORETY due process by committing assault and battery against him, illegally confining him, and forcing him to

appear before multiple judges of the Criminal Court despite there being no basis for holding plaintiff in custody and no basis for submitting the plaintiff to criminal prosecution.

37. That on at all times mentioned herein, the aforementioned ways in which officers/agents/employees of the New York City Police Department proceeded denied plaintiff ROBERT J. MORETY due process were part of a custom and practice of the New York City Police Department.

38. This custom and practice of the New York City Police Department was the moving force, proximate cause and/or affirmative link behind the conduct which caused plaintiff ROBERT J. MORETY 's injuries.

COUNT 3: ASSAULT AND BATTERY

39. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 38 with the same force as if alleged in full herein.

40. The officers/agents/employees of the New York City Police Department striking plaintiff ROBERT J. MORETY repeatedly constitutes assault and battery.

41. As a proximate result of the assault and battery committed by officers/agents/employees of the New York City Police Department, plaintiff ROBERT J. MORETY has sustained permanent injuries and has incurred medical bills and other expenses. These injuries have caused and will continue to cause the plaintiff great pain and suffering, both physical and mental.

42. The intentional conduct to the plaintiff by officers/agents/employees of the New York City Police Department while plaintiff was in their care and custody was done with actual malice towards the plaintiff and with willful and wanton indifference to and deliberate disregard for human life and the rights of plaintiff as a civilian in the public population. Plaintiff ROBERT J. MORETY is thus entitled to exemplary damages.

COUNT 4: NEGLIGENCE

43. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 42 with the same force as if alleged in full herein.

44. At all times, the officers/agents/employees of the New York City Police Department were acting within the scope of their duties as officer/agents/employees of the Defendant THE CITY OF NEW YORK.
45. The officers/agents/employees of the New York City Police Department owed a duty to the Plaintiff ROBERT J. MORETY to perform their duties without the use of intimidation, coercion, verbal abuse and physical abuse and their conduct as set forth herein and refusing to abide by the Plaintiff's constitutional rights, when Plaintiff was unarmed and did not pose a threat of death or grievous bodily injury to said officers/agents/employees of the Defendant or others constitutes negligence.
46. Defendant THE CITY OF NEW YORK is liable for compensatory damages under the doctrines of respondeat superior for the negligence of actions of those aforementioned officers/agents/employees of the Defendant THE CITY OF NEW YORK committed within the scope of their employment or agency.
47. Defendant THE CITY OF NEW YORK owed a duty to the Plaintiff ROBERT J. MORETY and others to train and supervise and otherwise control the officers/agents/employees of the New York City Police Department in the preventing use of coercion, intimidation, violation of Constitutional rights and other matters incidental to the exercise of police functions.
48. As a proximate result of Defendant THE CITY OF NEW YORK's failure to provide adequate training, supervision and control of said police officers/agents/employees, Plaintiff ROBERT J. MORETY has sustained serious and permanent injuries.
49. As a proximate result of Defendant THE CITY OF NEW YORK's failure to provide adequate training, supervision and control of said police officers/agents/employees, Plaintiff ROBERT J. MORETY incurred and will continue to incur medical bills and other expenses. These injuries have caused and will continue to cause the Plaintiff pain and suffering.
50. Defendant THE CITY OF NEW YORK's failure to provide adequate training and supervision to its police officers/agents/employees constitutes a willful and wanton indifference and deliberate disregard for human life and liberty and the rights of private citizens, including the plaintiff ROBERT J. MORETY . Plaintiff is thus entitled to exemplary damages.

51. As a proximate result of the aforementioned negligent conduct, the plaintiff ROBERT J. MORETY has suffered the damages as aforesaid.

COUNT 5: TRESPASS AND CONVERSION OF PROPERTY

52. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 51 with the same force as if alleged in full herein.

53. Defendant THE CITY OF NEW YORK's officers/agents/employees used the criminal process against the Plaintiff ROBERT J. MORETY in order to trespass including conversion of property, of which the claimant was not guilty of the offense.

54. As a proximate result of this malicious abuse of process, trespass and conversion of property, the Plaintiff ROBERT J. MORETY suffered the damages as aforesaid.

COUNT 6: DEFAMATION AND DAMAGE TO REPUTATION

55. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 54 with the same force as if alleged in full herein.

56. Defendant THE CITY OF NEW YORK, via its officers/agents/employees acting within the scope of their agency or employment, defamed the plaintiff ROBERT J. MORETY, resulting in great damage to his personal and professional reputation.

57. As a proximate result of the aforementioned defamation and damage to his reputation, the plaintiff ROBERT J. MORETY has suffered the damages as aforesaid.

COUNT 7: MALICIOUS ABUSE OF PROCESS, ILLEGAL CONFINEMENT

58. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 57 with the same force as if alleged in full herein.

59. The officers/agents/employees of the New York City Police Department, acting in the scope of their employment or agency with the Defendant, THE CITY OF NEW YORK, illegally confined Plaintiff ROBERT J. MORETY.

60. The officers/agents/employees of the New York City Police Department used the criminal process against the plaintiff in order to illegally confine him and maliciously abuse his rights to due process.
61. As a proximate result of this malicious abuse of process and false confinement, Plaintiff suffered the damages as aforesaid.

COUNT 8: INTENTIONAL INFLICITON OF EMOTIONAL DISTRESS

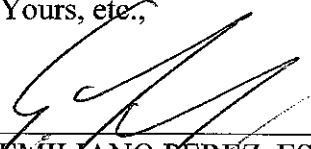
62. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 61 with the same force as if alleged in full herein.
63. That at all times mentioned herein, DETECTIVE ROBERTO ASSENCAO (Tax Reg #: 917254) acted with malicious intent towards the Plaintiff ROBERT J. MORETY.
64. That at all times mentioned herein, DETECTIVE ROBERTO ASSENCAO acted with malicious intent towards the Plaintiff ROBERT J. MORETY
65. That as a result of the conduct of DETECTIVE ROBERTO ASSENCAO (Tax Reg #: 917254), the Plaintiff ROBERT J. MORETY suffered severe emotional distress.
66. As a proximate result of this intentional infliction of emotional distress, Plaintiff suffered the damages as aforesaid.

WHEREFORE, plaintiff ROBERT J. MORETY demands judgment against the defendants, THE CITY OF NEW YORK and DETECTIVE ROBERTO ASSENCAO (Tax Reg #: 917254), and award in the following amounts:

- a) an amount in excess of the jurisdictional limits of all lower courts, each; together with the costs and disbursements of this action;
- b) exemplary damages in favor of the plaintiff ROBERT J. MORETY;
- c) costs of this action, including reasonable attorneys' fees to the Plaintiff pursuant to 42 U.S.C. § 1988;
- d) such other and further relief as the Court may deem appropriate.

DATED: Jackson Heights, New York
August 25, 2015

Yours, etc.,



EMILIANO PEREZ, ESQ.

Attorney for Plaintiff

ROBERT J. MORETY

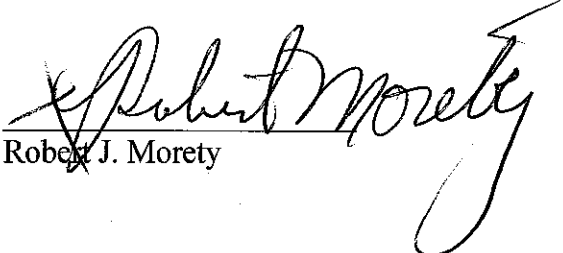
3732 75th Street

Jackson Heights, New York 11372

(718) 440-9214

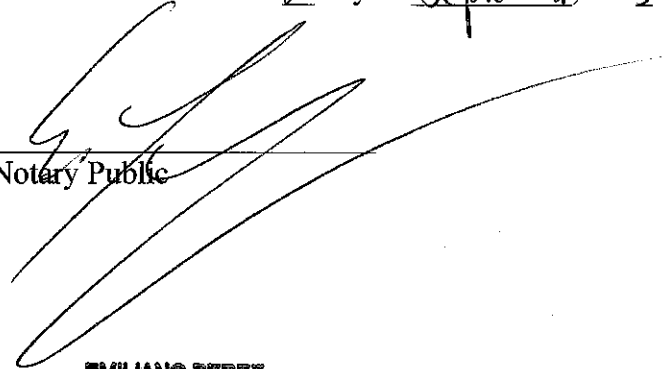
Verification

Robert J. Morety, being duly sworn, deposes and says: I am the plaintiff in the above entitled action. I have read the foregoing papers and know the contents thereof. The same are true to my knowledge, except as to the matters therein stated to be alleged on information and belief and as to those matters I believe them to be true. The undersigned affirms that the foregoing statement is true, under penalties of perjury.


Robert J. Morety

State of New York))
County of Queens))

Sworn before me this 2nd day of September, 2015


Notary Public

EMILIANO PEREZ
Notary Public, State of New York
Qualified in Queens County
No. 02PE6226178
My Commission Expires July 19, 2018

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

ROBERT J. MORETY,

Plaintiff,

-against-

**THE CITY OF NEW YORK and DETECTIVE ROBERTO
ASSENCAO (Tax Reg #: 917254),**

Defendants.

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF EMILIANO PEREZ

Attorney for the Plaintiff

ROBERT J. MORETY

Office and address

3732 75th Street 2nd fl.

Jackson Heights, New York 11372

(718) 440-9214

Fax: (718) 440-9178

Rule 130-1.1-a Certification:



Emiliano Perez, Esq.